GST COUNCIL

FROM FRAGMENTED INDIRECT TAXES → ARTICLES 246A, 269A AND → ARTICLE 279A COMPOSITION, QUORUM → SECRETARIAT, PROCEDURE, RECOMMENDATION-TO-LAW CHAIN → TAX-BASE BOUNDARIES: ALCOHOL, PETROLEUM → GST COMPENSATION BARGAIN AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

00

STAGE 00 FROM FRAGMENTED INDIRECT TAXES TO THE 101ST AMENDMENT COMPACT

FROM FRAGMENTED INDIRECT TAXES TO THE 101ST AMENDMENT COMPACT · PRE-GST PROBLEM MANUFACTURE TAX + SERVICE TAX + STATE · BROKEN CROSS-CREDIT + CASCADING + BORDER FRICTION. · 101ST AMENDMENT ACT, 2016 · ARTICLE 246A · SPECIAL SHARED GST COMPETENCE. · ARTICLE 269A · INTER-STATE LEVY, COLLECTION AND APPORTIONMENT.

PRE-GST PROBLEM manufacture tax + service tax + State VAT/CST + entry levies → broken cross-credit + cascading + border friction. → 101ST AMENDMENT ACT, 2016 → Article 246A — special shared GST competence. → Article 269A — inter-State levy, collection and apportionment.

CONSTITUTIONAL BASIS / ARTICLE

- PRE-GST PROBLEM manufacture tax + service tax + State VAT/CST + entry levies
- broken cross-credit + cascading + border friction.
- 101ST AMENDMENT ACT, 2016

POWER / PROCEDURE

- Article 246A → special shared GST competence.
- Article 269A → inter-State levy, collection and apportionment.
- Article 279A → Union-State GST Council.

CHECK / LIMIT

- Article 366(12A) → GST definition.
- CONSTITUTIONAL SURGERY omitted Article 268A + changed distribution provisions and Seventh Schedule entries.
- CORE IDEA pooled fiscal sovereignty for a destination-based common market.

FEDERAL / RIGHTS IMPACT

- "One Nation, One Tax" is shorthand; India operates dual GST with exclusions and variations.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Input-tax credit (ITC) reduces cascading only where the law permits credit and the taxpayer satisfies conditions.

01

STAGE 01 ARTICLES 246A, 269A AND 286: CGST, SGST AND IGST LEGAL ARCHITECTURE

ARTICLES 246A, 269A AND 286 · CGST, SGST AND IGST LEGAL ARCHITECTURE · INTRA-STATE SUPPLY · CENTRAL LAW · STATE/UT LAW · INTER-STATE SUPPLY · ARTICLE 246A(2) · PARLIAMENT HAS EXCLUSIVE GST LEGISLATIVE POWER.

INTRA-STATE SUPPLY

Central law → CGST → State/UT law → SGST/UTGST. → INTER-STATE SUPPLY: ARTICLE 246A(2)

CONSTITUTIONAL BASIS / ARTICLE

- INTRA-STATE SUPPLY
- Central law → CGST
- State/UT law → SGST/UTGST.

POWER / PROCEDURE

- INTER-STATE SUPPLY: ARTICLE 246A(2)
- Parliament has exclusive GST legislative power.
- ARTICLE 269A

CHECK / LIMIT

- Government of India levies and collects IGST
- parliamentary law on place of supply and apportionment
- settlement between Union and destination State.

FEDERAL / RIGHTS IMPACT

- IMPORT deemed inter-State supply for GST architecture.
- ARTICLE 286 limits State taxation of supplies outside the State or in import/export course.
- IGST is not a third destination government's tax; it is the settlement bridge for an integrated dual-GST system.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 269A makes IGST a clearing mechanism for inter-State supplies, allowing Union collection with destination-based apportionment rather than creating a separate final tax burden.

02

STAGE 02 ARTICLE 279A COMPOSITION, QUORUM, WEIGHTED VOTE AND RECOMMENDATION FIELDS

ARTICLE 279A COMPOSITION, QUORUM, WEIGHTED VOTE AND RECOMMENDATION FIELDS · UNION FINANCE MINISTER · UNION MINISTER OF STATE FOR REVENUE/FINANCE. · STATE FINANCE/TAXATION MINISTERS OR NOMINATED MINISTERS. · STATE MEMBERS CHOOSE A VICE-CHAIRPERSON. · QUORUM ONE-HALF OF TOTAL MEMBERS. · WEIGHTED VOTE · STATES TOGETHER

Union Finance Minister → Chairperson.

Union Minister of State for Revenue/Finance. → State finance/taxation ministers or nominated ministers. → State members choose a Vice-Chairperson.

CONSTITUTIONAL BASIS / ARTICLE

- Union Finance Minister → Chairperson.
- Union Minister of State for Revenue/Finance.
- State finance/taxation ministers or nominated ministers.
- State members choose a Vice-Chairperson.
- QUORUM one-half of total members.

POWER / PROCEDURE

- WEIGHTED VOTE
- Union = one-third
- States together = two-thirds.
- Decision = at least three-fourths of weighted votes of members present and voting.
- COALITION MATHEMATICS

CHECK / LIMIT

- Union alone cannot pass
- States alone cannot pass.
- RECOMMENDATION FIELDS taxes to subsume
- model laws
- place of supply thresholds

FEDERAL / RIGHTS IMPACT

- special rates
- petroleum start date
- special provisions.
- Council recommends; competent legislatures and delegated instruments create law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Therefore, when the Union supports a proposal, at least five-eighths of the State votes present and voting must support it, subject to rounding to a whole number of States.

03

STAGE 03 SECRETARIAT, PROCEDURE, RECOMMENDATION-TO-LAW CHAIN AND DISPUTES

SECRETARIAT, PROCEDURE, RECOMMENDATION-TO-LAW CHAIN AND DISPUTES · INSTITUTIONAL SUPPORT · GST COUNCIL SECRETARIAT · AGENDA, RECORDS, COORDINATION AND IMPLEMENTATION FOLLOW-UP. · PROCEDURE PROPOSAL · COMMITTEE/OFFICER ANALYSIS · AGENDA NOTE · CONSENSUS OR WEIGHTED VOTE

CONSTITUTIONAL BASIS / ARTICLE

- INSTITUTIONAL SUPPORT
- GST Council Secretariat → agenda, records, coordination and implementation follow-up.
- PROCEDURE proposal → committee/officer analysis → agenda note → meeting

POWER / PROCEDURE

- consensus or weighted vote → minutes/recommendation → legal instrument.
- LEGAL-EFFECT CHAIN constitutional recommendation
- Parliament/State legislature enacts or amends statute or authorised executive issues rule/notification

CHECK / LIMIT

- taxpayer obligation.
- ARTICLE 279A(11)
- Council shall establish a mechanism to adjudicate specified Union-State disputes.

FEDERAL / RIGHTS IMPACT

- CURRENT LIMIT no complete publicly verified constitutional mechanism is asserted as operational.
- GSTAT and taxpayer appeals are not silently relabelled Article 279A(11) adjudication.

MECHANISM / VERDICT — CURRENT LIMIT no complete publicly verified constitutional mechanism is asserted as operational.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Reasoned records and timely publication strengthen GST Council accountability because tax coordination affects prices, revenue and State autonomy, although disclosure remains subject to lawful confidentiality.

04

STAGE 04 TAX-BASE BOUNDARIES: ALCOHOL, PETROLEUM, ELECTRICITY, RATES AND INPUT CREDIT

TAX-BASE BOUNDARIES · ALCOHOL, PETROLEUM, ELECTRICITY, RATES AND INPUT CREDIT · ALCOHOLIC LIQUOR FOR HUMAN CONSUMPTION EXCLUDED FROM ARTICLE 366(12A) · FIVE PETROLEUM PRODUCTS · GST LEVY BEGINS FROM A DATE RECOMMENDED UNDER ARTICLE · UNTIL THEN, RETAINED EXCISE/VAT FIELDS CONTINUE. · TOBACCO WITHIN GST WHILE RETAINED UNION EXCISE COMPETENCE ALSO · ELECTRICITY NOT EXCLUDED BY THE GST DEFINITION LIKE ALCOHOL

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ALCOHOLIC LIQUOR FOR HUMAN CONSUMPTION excluded from Article 366(12A) GST definition.	until then, retained excise/VAT fields continue.	electricity duty remains under Entry 53 and supply treatment needs exact law.	INPUT-TAX CREDIT reduces cascading where statutory eligibility and compliance conditions are met.
FIVE PETROLEUM PRODUCTS	TOBACCO within GST while retained Union excise competence also exists.	RATE / EXEMPTION / THRESHOLD	TRAP do not convert a press release into a self-executing tax rate.
GST levy begins from a date recommended under Article 279A(5)	ELECTRICITY not excluded by the GST definition like alcohol	Council recommendation → competent notification or legislation.	

CONSTITUTIONAL BASIS / ARTICLE

- ALCOHOLIC LIQUOR FOR HUMAN CONSUMPTION excluded from Article 366(12A) GST definition.
- FIVE PETROLEUM PRODUCTS
- GST levy begins from a date recommended under Article 279A(5)

POWER / PROCEDURE

- until then, retained excise/VAT fields continue.
- TOBACCO within GST while retained Union excise competence also exists.
- ELECTRICITY not excluded by the GST definition like alcohol

CHECK / LIMIT

- electricity duty remains under Entry 53 and supply treatment needs exact law.
- RATE / EXEMPTION / THRESHOLD
- Council recommendation → competent notification or legislation.

FEDERAL / RIGHTS IMPACT

- INPUT-TAX CREDIT reduces cascading where statutory eligibility and compliance conditions are met.
- TRAP do not convert a press release into a self-executing tax rate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: State List Entry 54 retains taxes on sale of the specified petroleum products and alcoholic liquor for human consumption, subject to the entry's limits.

05

STAGE 05 GST COMPENSATION BARGAIN AND DATED POST-TRANSITION BOUNDARY

GST COMPENSATION BARGAIN AND DATED POST-TRANSITION BOUNDARY · COMPENSATION ACT, 2017 BASE YEAR 2015-16 · PROJECTED ANNUAL REVENUE GROWTH 14% · PROTECTED REVENUE MINUS ACTUAL REVENUE · COMPENSATION GAP. · FUNDING COMPENSATION CESS ON SPECIFIED SUPPLIES · COMPENSATION FUND. · TRANSITION FIVE YEARS FROM GST INTRODUCTION

COMPENSATION ACT, 2017 base year 2015-16 → projected annual revenue growth 14% → protected revenue minus actual revenue → compensation gap. → FUNDING compensation cess on specified supplies → Compensation Fund. → TRANSITION five years from GST introduction → entitlement ended in June 2022. → PANDEMIC SHOCK revenue/cess shortfall → back-to-back borrowing arrangement

CONSTITUTIONAL BASIS / ARTICLE

- COMPENSATION ACT, 2017 base year 2015-16 → projected annual revenue growth 14%
- protected revenue minus actual revenue → compensation gap.

POWER / PROCEDURE

- FUNDING compensation cess on specified supplies → Compensation Fund.
- TRANSITION five years from GST introduction → entitlement ended in June 2022.

CHECK / LIMIT

- PANDEMIC SHOCK revenue/cess shortfall → back-to-back borrowing arrangement
- cess continued for servicing principal and interest.

FEDERAL / RIGHTS IMPACT

- CURRENT CONTROL: 24 AUGUST 2026 later cess collection for loan servicing != renewed five-year compensation entitlement.
- REFORM LESSON future shocks need transparent accounts, predictable settlement and negotiated burden sharing.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: GST compensation was a five-year statutory transition guarantee that sustained federal trust, not a permanent constitutional entitlement directly administered by the Council.

06

STAGE 06 MOHIT MINERALS (2022): PERSUASION, LEGISLATION AND DELEGATED ACTION

MOHIT MINERALS (2022) · PERSUASION, LEGISLATION AND DELEGATED ACTION · CONSTITUTIONAL HOLDING · ARTICLE 279A RECOMMENDATIONS ARE PERSUASIVE AND CARRY COOPERATIVE VALUE · THEY ARE NOT BINDING COMMANDS ON PARLIAMENT OR STATE · ARTICLE 246A GIVES SIMULTANEOUS LEGISLATIVE POWER AND INDIAN FEDERALISM · STATUTORY QUALIFICATION WHERE GST LEGISLATION CONDITIONS DELEGATED RULES OR · CASE RESULT OCEAN-FREIGHT LEVY FAILED WITHIN THE STATUTORY COMPOSITE-SUPPLY

Mohit Minerals (2022)

CONSTITUTIONAL HOLDING → Article 279A recommendations are persuasive and carry cooperative value → they are not binding commands on Parliament or State legislatures.

CONSTITUTIONAL BASIS / ARTICLE

- Mohit Minerals (2022)
- CONSTITUTIONAL HOLDING

POWER / PROCEDURE

- Article 279A recommendations are persuasive and carry cooperative value
- they are not binding commands on Parliament or State legislatures.

CHECK / LIMIT

- Article 246A gives simultaneous legislative power and Indian federalism works through dialogue, not Council hierarchy.
- STATUTORY QUALIFICATION where GST legislation conditions delegated rules or notifications on Council recommendation, the executive must obey that

FEDERAL / RIGHTS IMPACT

- CASE RESULT ocean-freight levy failed within the statutory composite-supply framework.
- TRAP non-binding recommendation != irrelevant Council and it does not authorise executive action contrary to enacted GST law.

MECHANISM / VERDICT — CASE RESULT ocean-freight levy failed within the statutory composite-supply framework.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Mohit Minerals (2022) preserves both sides of the GST compact: legislatures retain Article 246A authority, while Council recommendations remain central to coordinated fiscal decision-making.

07

STAGE 07 FEDERAL BARGAINING, FINANCE COMMISSION COMPARISON AND TECHNOLOGY-COMPLIANCE LOOP

FEDERAL BARGAINING, FINANCE COMMISSION COMPARISON AND TECHNOLOGY-COMPLIANCE LOOP · GST COUNCIL CONTINUOUS BARGAINING OVER A POOLED INDIRECT-TAX BASE. · FINANCE COMMISSION PERIODIC ARTICLE 280 RECOMMENDATION ON DIVISIBLE TAXES · FEDERAL GAINS COMMON MARKET + DESTINATION SETTLEMENT + SHARED · FEDERAL COSTS REDUCED UNILATERAL STATE RATE SPACE + UNION · UNEQUAL ADMINISTRATIVE CAPACITY. · TECHNOLOGY CHAIN REGISTRATION · CREDIT MATCHING

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
GST COUNCIL continuous bargaining over a pooled indirect-tax base.	FEDERAL COSTS reduced unilateral State rate space + Union veto capacity compensation trust deficit	analytics → audit/appeal.	operational dispute mechanism + stronger State capacity.
FINANCE COMMISSION periodic Article 280 recommendation on divisible taxes and grants.	unequal administrative capacity.	CAUTION digital trace improves verification but can create exclusion, mismatch and refund burdens.	
FEDERAL GAINS common market + destination settlement + shared rule forum + coordinated compliance.	TECHNOLOGY CHAIN registration → invoice/reporting → credit matching → return/payment	REFORM publish revenue models + reasoned minutes + stable rate design	

CONSTITUTIONAL BASIS / ARTICLE

- GST COUNCIL continuous bargaining over a pooled indirect-tax base.
- FINANCE COMMISSION periodic Article 280 recommendation on divisible taxes and grants.
- FEDERAL GAINS common market + destination settlement + shared rule forum + coordinated compliance.

POWER / PROCEDURE

- FEDERAL COSTS reduced unilateral State rate space + Union veto capacity compensation trust deficit
- unequal administrative capacity.
- TECHNOLOGY CHAIN registration → invoice/reporting → credit matching → return/payment

CHECK / LIMIT

- analytics → audit/appeal.
- CAUTION digital trace improves verification but can create exclusion, mismatch and refund burdens.
- REFORM publish revenue models + reasoned minutes + stable rate design

FEDERAL / RIGHTS IMPACT

- operational dispute mechanism + stronger State capacity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The GST Council coordinates a shared tax base, while the Finance Commission, Inter-State Council and Zonal Councils perform distinct redistributive or deliberative federal functions.

08

STAGE 08 CURRENT ANCHORS, PYQ ROUTES, TRAPS AND QUALIFIED SYNTHESIS

CURRENT ANCHORS, PYQ ROUTES, TRAPS AND QUALIFIED SYNTHESIS · DATED ANCHORS · 56TH COUNCIL MEETING RELEASE · 3 SEPTEMBER 2025. · APRIL 2026 SECRETARIAT NEWSLETTER · NOTIFICATION-ON-RECOMMENDATION EXAMPLE. · NO COMMODITY-WISE CURRENT RATE LIST IS FROZEN. · PRELIMS FIREWALL QUORUM ONE-HALF

DATED ANCHORS → 56th Council meeting release: 3 September 2025. → April 2026 Secretariat newsletter: notification-on-recommendation example. → No commodity-wise current rate list is frozen. → PRELIMS FIREWALL quorum one-half

CONSTITUTIONAL BASIS / ARTICLE

- DATED ANCHORS
- 56th Council meeting release: 3 September 2025.
- April 2026 Secretariat newsletter: notification-on-recommendation example.
- No commodity-wise current rate list is frozen.
- PRELIMS FIREWALL quorum one-half

POWER / PROCEDURE

- Union one-third
- States two-thirds decision threshold three-fourths weighted alcohol excluded
- petroleum deferred
- electricity separately treated recommendation != legislation
- compensation entitlement ended June 2022.

CHECK / LIMIT

- PYQ ROUTES
- 2018 exemption mechanics
- 2019 subsumed taxes
- 2020 compensation
- 2023 101st Amendment/federalism

FEDERAL / RIGHTS IMPACT

- 2025 fiscal-federalism adjacency.
- MAINS SPINE pre-GST defect → three-Article architecture → Council bargain
- legal-effect limit → federal gain/cost → dated anchor
- transparent, predictable and cooperative reform verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legal effect then depends on the constitutional/statutory route: parliamentary or State legislation, amendment of rules, or a Gazette notification by the competent government.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · PART A — ESTABLISHMENT · PART B — COMPOSITION · PART C — WORKING (VOTING MATHS) · PART D — FUNCTIONS · PART E — CURRENT DEVELOPMENTS · A CONSTITUTIONAL FEDERAL RECOMMENDATORY FORUM CENTRAL TO GST DESIGN · SECRETARIAT AT NEW DELHI ; THE UNION REVENUE SECRETARY

OPTIONAL DOCTRINE / CASE

- PART A — ESTABLISHMENT
- PART B — COMPOSITION
- PART C — WORKING (voting maths)
- PART D — FUNCTIONS

ADVANCED LIMIT

- PART E — CURRENT DEVELOPMENTS
- A constitutional federal recommendatory forum central to GST design — a model
- Secretariat at New Delhi ; the Union Revenue Secretary is the ex-officio Secretary ; the CBIC/CBEC
- Recommends the date to bring petroleum crude, diesel, petrol, natural gas, ATF under GST (currently

COMPARATIVE NUANCE

- Must set up a dispute-resolution mechanism (Centre–state / state–state).
- Recommended compensation to states for revenue loss for 5 years (GST Compensation Act, 2017).
- GST 2.0 (56th GST Council, effective 22 Sept 2025); the old four-slab structure (5/12/18/28%) was
- CAUTION: Mohit Minerals (2022) case (SC, 2022): GST Council recommendations are only persuasive, NOT binding on the

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels